

objection to the present was started on the trial by Lee against the legality of the action, but Lord Mansfield refused to non-suit the plaintiff; upon which he went into his case, and it afterwards appeared in the course of the enquiry that the plaintiff's demand had been satisfied. From this it is evident that his Lordship thought that a commanding officer might make himself liable, and that whether he had, or not, was a proper subject for the enquiry of a jury.

Taking this to be the case of a factor residing abroad, who transacts business for his principal in England; if the former had undertaken in the same manner that the defendant has done in this case, he would have made himself personally liable, since they may both be bound.

Supposing that the articles furnished were for the use of Government, that will not vary the question. A master of a ship who contracts for necessaries for the use of the ship is personally liable, though he be known at the time not to be the owner (a). At all events, if there be any difference between this case and that of agent and principal to which the present is likened, yet every agent who personally undertakes cannot dispute his liability.

The whole question therefore should have been left to the jury, whose conduct proved that they entertained doubts upon it, till they were informed that the plaintiff had his remedy against the Crown.

But if there be no remedy in the form of a petition of right against the Crown, on account of the appropriation of the supplies since the Revolution, and the public is to be considered as the real debtor, then there was no other person, against whom this demand could so properly be urged, as against the defend-[180]-ant, who represented and acted as ostensible agent for the public in this transaction.

Lord Mansfield, Ch.J.—The only question before the Court is, whether the defendant be liable or not in this action? If he be, the plaintiff must recover; if not, no consideration respecting the plaintiff's remedy against any other party can induce the Court to make him so.

There is no colour to say that he is liable in his character of commander-in-chief.

In a late case which was tried before me, where one Savage brought an action against Lord North, as first Lord of the Treasury, in order that he might be reimbursed the expenses which he had incurred in raising a regiment for the service of Government, I held that the action did not lie.

So in another case of *Lutterloh* against *Halsey*, which was an action brought against the defendant, who was a commissary, for the supply of forage for the Army, and by whom the plaintiff had been employed in that service, the commissary was held not liable.

In the present case it was notorious that the defendant did not personally contract; the plaintiff knew, at the time that he furnished the stores, that they were for the use of Government; and he afterwards made Government debtor in his bills.

But it has been urged that the defendant made himself liable after the debt was contracted. In my opinion there is no ground for such an argument: the evidence does not warrant it.

Then it was objected, that whether the defendant had made himself liable or not was a question which ought to have been left to the jury to decide. But there was no evidence which was proper for their consideration; for the evidence consisting altogether of written documents and letters which were not denied, the import of them was matter of law and not of fact. Therefore I am of opinion that the verdict should stand.

Willes, J. I think, under all the circumstances of the present case, that the defendant is not personally liable. The goods were furnished for the use of the Crown; Government [181] was made debtor; and all the letters speak of the transaction as having been considered in that light. Then if the defendant were liable, his person and property would be subject to an execution, and he must afterwards apply to Government for a reimbursement, which would be no satisfaction to him for the inconvenience he had been put to.

The letter from the defendant's secretary shews that what he did was under the direction of Government, and that the fund, out of which the plaintiff was to be paid,